NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH
GUWAHATI

CP (CAA)/14/GB/2022
In CA (CAA) NO. 03/GB/2022

Coram:
Hon'ble Shri Deep Chandra Joshi Member (J): **Hearing through**
Hon'ble Shri Prasanta Kumar Mohanty, Member (T): **Video Conference**

ATTENDANCE-CUM- ORDER SHEET OF THE HEARING OF GUWAHATI BENCH OF THE NATIONAL COMPANY LAW TRIBUNAL ON 20.01.2023.

In the matter of:
Blueberry Tradecom Pvt. Ltd. and Five Another

(Transferor Companies)

And
Sagar Roofing Pvt. Ltd.

(Transferee Company)

Section: Under Section 230 to 232 of Companies Act, 2013

S. NO.	NAME (CAPITAL LETTERS)	DESIGNATION	REPRESENTATION	SIGNATURE
1.	MR. MADAN KR. MARUTI	CA	Petitioners	Present in Video Conference

ORDER

The Applicant is represented through respective Learned Counsel (s).

The case is fixed for pronouncement of order.

The Order is pronounced in the open court, Through Video Conferencing vide separate sheet.

Sd/-

(Prasanta Kumar Mohanty)
Member (Technical)

Sd/-

(Deep Chandra Joshi)
Member (Judicial)

NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH
GUWAHATI

CP (CAA)/14/GB/2022
In CA (CAA) No. 03/GB/2022

Coram:
Hon'ble Shri Deep Chandra Joshi, Member (J) : Hearing through
Hon'ble Shri Prasanta Kumar Mohanty, Member (T): Video Conferencing

Under Section 230-232 of Companies Act, 2013

In the matter of:
BLUEBERRY TRADECOM PRIVATE LIMITED
A Private Limited Company incorporated under the provisions
Of the Companies Act, 1956 (CIN U52390AS2010PTC017625)
And having Registered Office at Room No. 206, Sikaria Complex,
Old Building, Sati Jaymati Road, Athgaon, Ward No. 19
Guwahati, Kamrup-781001

… **Transferor Company No. 1**

AND

EMBARK VANIJYA PRIVATE LIMITED
A Private Limited Company incorporated under the provisions
Of the Companies Act, 1956 (CIN U52100AS2010PTC017628)
And having Registered Office at Room No. 206, Sikaria Complex,
Old Building, Sati Jaymati Road, Athgaon, Ward No. 19
Guwahati, Kamrup-781001.

… **Transferor Company No. 2**

AND

GLOSSY VANIJYA PRIVATE LIMITED
A Private Limited Company incorporated under the provisions
Of the Companies Act, 1956 (CIN U51909AS2010PTC017645)
And having Registered Office at Room No. 201, 2nd Floor,
Block –B, Sikaria Complex, Sati Jaymati Road, Athgaon,
Guwahati, Kamrup-781001.

…Transferor Company No. 3

AND

HEMINGWAY APARTMENTS PRIVATE LIMITED
A Private Limited Company incorporated under the provisions
Of the Companies Act, 1956 (CIN U45201AS1997PTC017646)
And having Registered Office at Room No. 206, 2nd Floor,
Old Building, Sikaria Complex, Sati Jaymati Road,
Athgaon, Ward No. 19, Guwahati, Kamrup-781001.

…Transferor Company No. 4

AND

JALDHAM VINTRADE PRIVATE LIMITED
A Private Limited Company incorporated under the provisions
Of the Companies Act, 1956 (CIN U51909AS2010PTC017626)

And having Registered Office at Room No. 201, New Building,
Block-B, 2nd Floor, Sikaria Complex, Sati Jaymati Road,
Athgaon, Guwahati, Kamrup-781001.

... Transferor Company No. 5

AND

SIDHIDATA MARKETING PRIVATE LIMITED
A Private Limited Company incorporated under the provisions
Of the Companies Act, 1956 (CIN U51909AS2010PTC017627)
And having Registered Office at Room No. 201, New Building,
Block B, 2nd Floor, Sikaria Complex, Sati Jaymati Road, Athgaon
Guwahati, Kamrup-781001. **... Transferor Company No. 6**

WITH

SAGAR ROOFINGS PRIVATE LIMITED
A Private Limited Company incorporated under the provisions
Of the Companies Act, 1956 (CIN U20100AS1999PTC005904)
And having Registered Office at Sikaria Complex, SJ Road, Athgaon,
Guwahati-781001.

.... Transferee Company

Order delivered on 20/01/2023

ORDER
[Per se: Shri Prasanta Kumar Mohanty, Member (T)]

1. This Company Petition has been filed by the Applicant Companies under Sections 230 to 232 of the Companies Act, 2013, seeking the following reliefs:

a. The Scheme of Amalgamation mentioned in this Petition being Annexure "A" hereto be sanctioned by this Hon'ble Tribunal to be binding with effect from 1st day of April, 2021 on BLUEBERRY TRADECOM PRIVATE LIMITED, EMBARK VANIJYA PRIVATE LIMITED, GLOSSY VANIJYA PRIVATE LIMITED, HEMINGWAY APARTMENTS PRIVATE LIMITED, JALDHAM VINTRADE PRIVATE LIMITED and SIDHIDATA MARKETING PRIVATE LIMITED with SAGAR ROOFINGS PRIVATE LIMITED and their shareholders and all concerned;

b. All the properties, rights and interest of BLUEBERRY TRADECOM PRIVATE LIMITED, EMBARK VANIJYA PRIVATE LIMITED, GLOSSY VANIJYA PRIVATE LIMITED, HEMINGWAY APARTMENTS PRIVATE LIMITED, JALDHAM VINTRADE PRIVATE LIMITED and SIDHIDATA MARKETING PRIVATE LIMITED be transferred to and vested in without further act or deed in SAGAR ROOFINGS PRIVATE LIMITED and accordingly the same shall pursuant to Section 232 of the Companies Act, 2013 and read with Companies

(Compromises, Arrangements and Amalgamation) Rules, 2016 be transferred to and vested in SAGAR ROOFINGS PRIVATE LIMITED for all the estate and interest of BLUEBERRY TRADECOM PRIVATE LIMITED, EMBARK VANIJYA PRIVATE LIMITED, GLOSSY VANIJYA PRIVATE LIMITED, HEMINGWAY APARTMENTS PRIVATE LIMITED, JALDHAM VINTRADE PRIVATE LIMITED and SIDHIDATA MARKETING PRIVATE LIMITED but subject nevertheless to all charges, now affecting the same;

c. All the liabilities and duties of BLUEBERRY TRADECOM PRIVATE LIMITED, EMBARK VANIJYA PRIVATE LIMITED, GLOSSY VANIJYA PRIVATE LIMITED, HEMINGWAY APARTMENTS PRIVATE LIMITED, JALDHAM VINTRADE PRIVATE LIMITED and SIDHIDATA MARKETING PRIVATE LIMITED be transferred without further act or deed to SAGAR ROOFINGS PRIVATE LIMITED and accordingly the same shall pursuant to Section 232 of the Companies Act, 2013 and read with Companies (Compromises, Arrangements and Amalgamation) Rules, 2016 be transferred to and become the liabilities and duties of SAGAR ROOFINGS PRIVATE LIMITED;
d. That all the proceedings and/or suit appeals now pending by or against BLUEBERRY TRADECOM PRIVATE LIMITED, EMBARK VANIJYA PRIVATE LIMITED, GLOSSY VANIJYA PRIVATE LIMITED, HEMINGWAY APARTMENTS PRIVATE LIMITED, JALDHAM VINTRADE PRIVATE LIMITED and SIDHIDATA MARKETING PRIVATE LIMITED shall be continued by or against SAGAR ROOFINGS PRIVATE LIMITED;
e. The Transferee Company do issue and allot shares to the shareholders of BLUEBERRY TRADECOM PRIVATE LIMITED, EMBARK VANIJYA PRIVATE LIMITED, GLOSSY VANIJYA PRIVATE LIMITED, HEMINGWAY APARTMENTS PRIVATE LIMITED, JALDHAM VINTRADE PRIVATE LIMITED and SIDHIDATA MARKETING PRIVATE LIMITED as envisaged in the said Scheme of Amalgamation and for that, if necessary, to increase the authorized share capital;
f. The schedule of assets in respect of BLUEBERRY TRADECOM PRIVATE LIMITED, EMBARK VANIJYA PRIVATE LIMITED, GLOSSY VANIJYA PRIVATE LIMITED, HEMINGWAY APARTMENTS PRIVATE LIMITED, JALDHAM PRIVATE LIMITED and SIDHIDATA MARKETING PRIVATE LIMITED be filed within a period of 60 days from the date of the order to be made herein;
g. The Transferor Companies namely BLUEBERRY TRADECOM PRIVATE LIMITED, EMBARK VANIJYA PRIVATE LIMITED, GLOSSY VANIJYA PRIVATE LIMITED, HEMINGWAY APARTMENTS PRIVATE LIMITED, JALDHAM VINTRADE PRIVATE LIMITED and

SIDHIDATA MARKETING PRIVATE LIMITED shall stand dissolved from the appointed date;

h. SAGAR ROOFINGS PRIVATE LIMITED, BLUEBERRY TRADECOM PRIVATE LIMITED, EMBARK VANIJYA PRIVATE LIMITED, GLOSSY VANIJYA PRIVATE LIMITED, HEMINGWAY APARTMENTS PRIVATE LIMITED, JALDHAM VINTRADE PRIVATE LIMITED and SIDHIDATA MARKETING PRIVATE LIMITED shall within 30 days after the date of obtaining the Certified Copy of the order to be made herein cause certified copies of this order to be delivered to the Registrar of Companies, West Bengal for registration respectively;

i. Any person interested be at liberty to apply to this Hon'ble Tribunal in the above matter for any direction that may be necessary;

j. Such further or other order or orders be made and directions be given as to this Hon'ble Tribunal may deem fit and proper.

2. The registered offices of the Transferor Companies and Transferee Company are situated in the State of Assam, within the jurisdiction of this Bench.

3. From the records, it is seen that the first motion application seeking various directions was filed before this Tribunal vide CA (CAA) No. 3/GB/2022 and based on such joint application moved under Section 230-232 of the Companies Act, 2013, directions were issued by this Tribunal, wherein the meetings of Equity Shareholders of both the Transferor Companies and Transferee Company, Unsecured Creditors of Transferee Company, Secured Creditors of Transferor Companies, Unsecured Creditors of Transferor Company No. 3 & 4 and Unsecured Creditors of the Transferor Company No. 1,2,5 and 6 were dispensed with vide Order dated 28.07.2022. And directions were given for the convening/manner/place and date of the meeting of the Secured Creditors of the Transferee Company and also appointed the Director of the Transferee Company as the Chairperson for the said meeting.

4. The Petitioner submits that:

a. The meeting as Directed by the Hon'ble Tribunal vide order dated 28.07.2022 in Company Application No. CA (CAA) No. 3/GB/2022 was convened and held under the supervision of the said Chairperson on the date time and venue mentioned in the order and the said Chairperson has submitted his report duly affirmed by his affidavit to the Hon'ble Tribunal on 4th October, 2022.

b. The Petitioner Companies have complied with other directions passed by the Hon'ble Tribunal vide order 28.07.2022 in Company Application No. CA (CAA) No. 6/GB/2022 and have filed affidavit of compliance duly affirmed on 10th September, 2022.

5. Thereafter, the Petitioner Companies filed a second motion joint petition before this Tribunal within the time prescribed under law.

6. Now this Petition is coming up for approval of the scheme as well as for other consequential directions in terms of the provisions of Section 230-232 of the Companies Act, 2013 read with the attendant Rules, i.e., Companies (Compromise, Arrangement and Amalgamation) Rules, 2016 and it is now hereby ordered as follows:

i. The date of hearing of the Petition filed by the Petitioner Companies for the approval of the Scheme is fixed on 16/03/2023.

ii. Notice of the hearing shall be advertised in two Newspapers- "The Assam Tribune" in English and "Amar Asom" in vernacular language, having wide circulation in Assam, not less than fifteen days before the aforesaid date fixed for the hearing.

iii. In addition to the above public notices, the Petitioner Company shall serve the notice of the Petition on the following Authorities, namely, Income Tax Authorities Concerned (indicating the respective PAN Nos.), ROC NER Guwahati, Official Liquidator and Regional Director as well as other Sectoral Regulators or authorities, which may govern the working of the Company in the Scheme, at least thirty days before the date fixed for hearing of the above Petition.

iv. Further, notices shall also be served to Objector(s) or the representative(s) as contemplated under Sub-section (4) of Section 230 of the Companies Act, 2013 who may have made representations and who have desired to be heard directly or through their representatives, along with a copy of the Petition and the extracts filed therewith, at least fifteen days before the date fixed for hearing.

v. The Petitioner Companies shall, at least seven days before the date of hearing of the Petition, file an affidavit of service concerning said publication effected as well as service of notice on the authorities mentioned above including the Sectoral Regulator(s) as well as to Objectors, if any.

vi. Objections, if any, to the Scheme, contemplated by the Authorities to whom notice has been given, may be filed on or before the date of hearing fixed herein, failing which it may be considered by this Tribunal that there is no objection on the part of the Authorities to the approval of the Scheme, by this Tribunal, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and Regulations/Rules framed thereunder.

vii. The Petitioner Companies shall comply with the proviso to Sub-Section (7) of Section 230 as may be applicable under the circumstances on or before the date fixed for hearing by filing a certificate of the Companies' Auditor.

7. The Registry shall also report before the date fixed as to whether any objection has been received to the proposed 'Scheme'.

Sd/-

(Prasanta Kumar Mohanty)
Member (Technical)

Sd/-

(Deep Chandra Joshi)
Member (Judicial)